

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34, RICHMOND
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 01/12/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09>

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C22-01552

CASE NAME: SCHAEFER VS. BNSF RAILWAY COMPANY

***HEARING ON MOTION IN RE: TO STAY THE ACTION PENDING DETERMINATION OF APPEAL FILED BY BNSF**

FILED BY:

TENTATIVE RULING:

Defendant BNSF Railway Company's motion for a stay is **denied**.

This case arises out of an accident at a railroad crossing. Decedent Joshua Schaefer was in a car driven by Kaylee Mello when her car got stuck on the railroad tracks and was subsequently hit by a train. Joshua died as a result of the accident. Joshua's parents filed separate lawsuits, which were consolidated.

In August 2025, the court granted the City of Oakley's motion for summary judgment. Plaintiff Ronny Schaefer appealed this ruling. Plaintiffs Melissa Welsh-Schaefer and Kaylee Mello did not appeal and the time to appeal has run. BNSF seeks a stay of the entire case pending the outcome of

the appeal on the Court's ruling on Oakley's motion for summary judgment.

“ '[A] court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice.' [Citation.] ... '[t]he power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.' ” (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 141.)

The majority of cases cited by moving party involved staying one action while another litigation proceeded. (See, *Adams v. Paul* (1995) 11 Cal.4th 583, 592-93, *Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, and *Montrose Chemical Corp. v. Superior Court* (1993) 6 Cal.4th 287, 301.) In *Houghton v. Superior Court of Alameda County* (1922) 187 Cal. 661, the court found held that “a judgment which would be *res adjudicata* of matters involved in an action may be availed of during the pendency of an appeal from such judgment, either by a plea in abatement upon proof of which a judgment may be rendered that the action abate (*Connor v. Bank of Bakersfield*, 174 Cal. 400), or by a continuance of a second action until the result of the appeal has been determined”. Moving party has not cited a case similar to this one where one co-defendant prevailed on summary judgment and the trial court stayed the entire case pending appeal of the summary judgment motion. Still, the Court could, using its inherent power, grant a stay in this case.

BNSF argues that there is a high probability of inconsistent, multiple, and contradictory verdicts. BNSF argues that should Plaintiff prevail on its motion in limine one, precluding BNSF from arguing compared fault of the City, that would prejudice BNSF. BNSF also argues that it would be unfair to make BNSF go to trial alone when, if the appeal is successful, Oakley will then have to go to trial alone later. BNSF also argues that that expert discovery has not been completed and it would be best if all parties, including Oakley, were involved in expert discovery. Finally, BNSF argues that there is a risk of double recovery should the appeal prevail and Plaintiffs win trials against BNSF and Oakley.

Plaintiff Ronny Schaefer agrees that this case should be stayed. He argues that BNSF's motion for judgment on the pleadings should not be decided before the appeal of the granting of summary judgment as to Oakley. He also argues that he anticipates BNSF will try to exclude evidence presented in the opposition to Oakley's motion for summary judgment, which would be unfair to Plaintiff. Plaintiff is also concerned that if the appeal is successful, there would be two separate trials and a jury would not be able to apportion fault among Oakley and BNSF fairly. Finally, Plaintiff argues that if the appeal is granted, they would have to engage in costly expert discovery with Oakley after having already completed the expert discovery with BNSF.

Plaintiffs Melissa Welsh-Schaefer and Kaylee Mello oppose a stay. This case was filed in July 2022 and with a stay pending appeal, Plaintiffs argue that the trial would not take place within five years of filing the complaint (although the five-year statute for bringing a case to trial would be stayed if the Court entered a stay of the entire case). Plaintiffs argue that witness's memories will fade with time. Further, Plaintiffs argue that there will be inefficiency and injustice if a stay pending appeal is ordered in this case.

BNSF and Plaintiff Schaefer's reasons for requesting a stay are based primarily on the assumption that the Court's ruling on Oakley's motion for summary judgment was incorrect. The Court is not convinced that the moving or any other party has demonstrated a substantial likelihood

of prevailing on appeal such that a new trial would be required. In addition, BNSF and Schaefer's concerns about how the Court's ruling on Oakley's motion for summary judgment will affect the presentation of evidence at trial can be addressed by in motions in limine if appropriate and necessary. Further, a delay pending appeal will likely delay this case by possibly several years. Having considered all the arguments, the Court exercises its discretion and denies the request for a stay.

The clerk of the Court is directed to set the matter on the Case Management Conference (CMC) calendar for re-setting of the trial date and give notice of such date to all parties.

2. 9:00 AM CASE NUMBER: C23-01360
CASE NAME: LESLEE MARKHAM VS. MICHELLE TIERNAN
***HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS**
FILED BY: TIERNAN, MICHELLE
TENTATIVE RULING:

The hearing is continued to 9:00 a.m. on June 15, 2026, pursuant to the stipulation of the parties.

3. 9:00 AM CASE NUMBER: C23-01577
CASE NAME: APP FUNDING, LLC VS. GEORGE FRIE
***HEARING ON MOTION IN RE: ORDER TO AMEND DEFENDANTS' NAMES IN THE JUDGMENT**
FILED BY: APP FUNDING, LLC
TENTATIVE RULING:

Plaintiff and judgment creditor APP FUNDING, LLC ("Plaintiff") filed a Motion for Order to Amend Defendants' Names in the Judgment on October 30, 2025 (the "Motion to Amend Judgment"). The Motion to Amend Judgment was set for hearing on January 12, 2025.

Background

A sister-state Judgment was entered herein against the following defendants and judgment debtors (the "Defendants") on June 20, 2025 (the "Judgment"):

BE CLINICAL, INC. D/B/A BE CLINICAL
AEROHIVE NETWORKS, INC.
FIONA'S SWEETSHOPPE, CORP.
BE CLINICAL AESTHETICS AND WELLNESS, P.C.
BE CLINICAL HOLDINGS, INC.
FIGE, LLC
GEORGE W. FRIE